

## 26STCV02936 26STCV02936

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-11

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No. 9 - William Magana v. Svih Management LLC, et al.

Plaintiff William Magana's Motion for Leave to File Second Amended Complaint

Plaintiff William Magana moves

for leave to file his second amended complaint to add Jeffrey Klein and Carlo Brandon-Bordon as Defendants, add a cause of action for aiding and abetting harassment, remove a Labor Code claim, and consolidate other FEHA claims.

Evidentiary Objections

Plaintiff

makes 7 objections to the declaration of Aronson. Objection no. 1 is sustained based on mediation confidentiality. Objection no. 2 is sustained based on lack of foundation/personal knowledge. Objection no. 6 is sustained based on hearsay. All other objections are overruled.

Leave to Amend

Code

of Civil Procedure section 473(a)(1) provides, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Courts exercise their discretion "liberally to permit amendment," and "[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) A motion for leave to amend will normally be granted unless (a) the party seeking to amend has delayed bringing the proposed amendment; and (b) the delay in seeking leave to amend will cause

prejudice to an opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

#### Defendant

Svih Management LLC argues that Plaintiff does not provide an adequate explanation in his declaration for the delay in amending the first amended complaint because the incident involving Defendant Klein happened in late 2024/early 2025. However, while Plaintiff arguably could have amended the first amended complaint sooner, that does not mean his delay caused any undue prejudice to Defendants. Plaintiff filed his initial complaint in January 2026, and first amended complaint in February 2026. The parties are still at the pleading stage and trial has not been set. The Court will therefore permit Plaintiff to file the second amended complaint.

#### Defendant

also argues that the content of the proposed allegations against Defendant Klein arise from the parties' recent mediation and, therefore, are protected by mediation privilege. However, Defendant provides no admissible evidence showing this speculative assertion is true.

#### Disposition

#### Plaintiff

William Magana's motion for leave to file a second amended complaint is granted. Plaintiff is ordered to file the proposed second amended complaint attached as Exhibit C to the Declaration of Artest forthwith.